

Document: Brussels wants public contracts to prioritize quality over price

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By Aude van den Hove, Sebastian Starcevic · Jul 9, 2026, 10:58 AM · [View in your browser](#)

BRUSSELS — The European Commission is making quality and European preference central pillars of its revised public procurement framework, according to a draft of the Public Procurement Act obtained by POLITICO .

Under the draft proposal, contracts would generally be awarded on the basis of the best price-to-quality ratio rather than the lowest price. Contracting authorities would be required to give quality criteria a minimum weighting of 30 percent, rising to 50 percent for labor-intensive contracts, unless they can justify relying on price alone.

Environmental, social, innovation, security and resilience considerations would all count towards the quality assessment, embedding strategic policy objectives into procurement decisions.

The proposal also introduces the most far-reaching “Buy European” provisions yet seen in EU procurement law. Contracting authorities would be able to restrict participation to EU and other treaty-covered suppliers, require minimum EU or “covered” origin for goods and services, or grant evaluation preferences to European offers.

The Commission would also gain powers to impose mandatory European preference measures or close specific procurement markets to suppliers from third countries not covered by EU international procurement commitments where justified by security, resilience or reciprocity concerns.

The Public Procurement Act — due to land on Sept. 9 — would take the form of a regulation, even though 17 EU countries have called on the Commission to stick to a directive.

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